

HOUSE No. 3877

The Commonwealth of Massachusetts

PRESENTED BY:

David Allen Robertson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to retirement benefits for veterans.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 3877

By Representative Robertson of Tewksbury, a petition (accompanied by bill, House, No. 3877) of David Allen Robertson relative to retirement benefits for veterans. Veterans and Federal Affairs.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3530 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to retirement benefits for veterans.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of chapter 32 of the General Laws or any
2 other general or special law, rule, or regulation to the contrary, a member retired prior to July 24,
3 1996, in a retirement system as defined in section one who is a veteran, as defined Chapter 4
4 section 7, who served in the armed forces of the United States shall be entitled to credit for active
5 service in the armed services of the United States; provided that such creditable service shall not
6 be construed to include service for more than four years; and, provided further, that such
7 creditable service shall not be allowed for any period of active service for which said veteran has
8 received credit pursuant to paragraph (h) of subsection (1) of section 4 of chapter thirty-two of
9 the General Laws and provided further, that the amount does not exceed the eighty percent
10 allowed to retire. This act shall also apply to National Guard and Active Reserve personnel, who

are veterans, both former and present. Creditable service time, both enlisted and commissioned, may be applied toward retirement on a ratio of five years guard service or five years active reserve service substitutable for each year of active service.

SECTION 2. For the retirement system of any political subdivision, the provisions of this act shall take effect on the effective date of this act by majority vote of the board of such system and by the local legislative body. For the purposes of this paragraph, local legislative body shall mean a town meeting for a town system, the city council subject to the provisions of its charter for a city system, the county commissioners for a county system, the district members for a district system and the governing body of an authority for an authority system. Acceptance shall be deemed to have occurred upon the filing of a certification of such vote with the commissioner. Members retired prior to July 24, 1996 of a retirement system eligible for said creditable service under this act shall become eligible for said creditable service the month following the acceptance of this act by the local legislative body. Terms used in this act shall have the same meaning as those terms defined in section one of chapter thirty-two of the General Laws. For purposes of this section, the state teachers' and state employees' retirement systems shall be deemed to have accepted the provisions of this act.

SECTION 3. Section 6 of Chapter 116 of the acts of 2002 is hereby amended by striking out the last sentence.